



Training for Responsibility & Change

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TO THE CLERK

NATIONAL ASSEMBLY OF THE REPUBLIC OF KENYA

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A MEMORANDUM ON THE CONSTITUTIONAL AMENDMENT BILL, 2025

SUBMITTED BY:

TORCH AFRICA HUMAN RIGHTS AND CIVIL SOCIETY ORGANIZATION

About Torch Africa

Torch Africa is a human rights and civil society organization that has been operating in Bungoma County since its inception in 2008. The Organization has been involved in numerous public interest litigation cases various courts of law, human rights defense and advocacy on behalf of individuals and groups that are vulnerable, exploited and oppressed by the state, law enforcement agencies and other agencies in the County and Country.

Overview of the Memorandum

This Memorandum by **TORCH AFRICA** analyses the history of the various funds created by Parliament of the Republic of Kenya and others established under the Public Finance Management Act, 2012 by the Cabinet Secretary for Finance. The main focus is on the Constituency Development Fund Act 2003, which was amended in 2013, 2015, 2022 & 2023 the extent to which the Act and Fund activities complied with the directive principles and provisions of the Constitution of Kenya, 2010 or otherwise. The Memorandum analyses the National Government Affirmative Fund (NGAAF) and the Senate Oversight Fund (SOF). The Memorandum also reviews the various litigations and judgments by the High Court of Kenya,

Court of Appeal and the Supreme Court of Kenya and their implications on the existence, operation and management of the three funds.

The Memorandum finally provides an overview and analysis of the Constitutional Amendment Bill, 2025 and its attempts to entrench the three funds in the Constitution through a parliamentary initiative as opposed to a mixed initiative of both parliament and the popular approach vide a referendum. It outlines the reasons for TORCH AFRICA's' Objection to the proposed amendments and its position and viewpoint on matters pertaining to the current and future amendments of the Supreme Law of the Land (i.e., Constitution of Kenya, 2010). The Memorandum contains TOACH AFRICA's Position Statement and Recommendations on the ongoing debate regarding the Constitutional Amendment Bill, 2025 and its implications to the principle of separation of power, devolution and prudent utilization and management of public resources.

A Review of the High Court of Kenya Judgment against NG-CDF

The High Court of Kenya in *In the Constitutional and Human Rights Constitutional Petition 178 of 2016 (September 2024)* declared that the National Government Constituency Development Fund (NG-CDF) is unconstitutional. However, elected members of the National Assembly have been granted about two years to finish pending projects across their constituencies before the NG-CDF ceases to exist at midnight. This is in light of the *High Court declaring* the NG-CDF Act *unconstitutional* last year, whereby the *High Court* held that the Fund and all its projects and programmes shall cease to operate next year.

In a significant ruling, the High Court of Kenya recently declared the National Government Constituencies Development Fund (NG-CDF) unconstitutional. The ruling was based on several grounds, primarily the violation of the principle of separation of powers and the lack of Senate involvement when the NG-CDF Act was enacted. The Court emphasized that Members of Parliament should not be involved in the management of funds meant for development projects, as this infringes upon the executive branch's responsibilities.

The three judge bench, composed of *Justices Kanyi Kimondo, Mugure Thande and Roselyne Aburili*, based their decision on the belief that by concentrating both legislative and executive roles in MPs, the NG-CDF disrupted the balance of power and accountability that is essential for good governance.

The bench ruled that the National Government Constituencies Development Fund (NG-CDF) Act 2015 was unconstitutional with the Fund's operations set to wind down in June 2026. In a significant ruling, the High Court of Kenya recently declared the National Government Constituencies Development Fund (NG-CDF) unconstitutional. The ruling was based on several

grounds, primarily the violation of the principle of separation of powers and the lack of Senate involvement when the NG- CDF projects are initiated.

The National Government Constituency Development Fund (NG-CDF) was declared unconstitutional by the High Court and Court of Appeal primarily because it infringed upon constitutional principles of devolution, separation of powers, and prudent financial management. Specifically, the fund was seen as improperly involving Members of Parliament (MPs) in oversight roles that were more appropriately handled by county governments, and as duplicating county functions, creating inefficiencies and potentially wasteful use of public resources. The courts also found that the NG-CDF bypassed required Senate consultation and failed to ensure proper oversight of financial management.

The main reasons why the High Court for declaring the NG-CDF as unconstitutional are as follows:

Violation of Devolution: The court argued that the NG-CDF, by allowing MPs to oversee projects within their constituencies, effectively intruded into the functions of county governments, which are constitutionally responsible for local development. The Court found that the NG-CDF created a parallel system of development administration, which overlapped with the County Governments' functions. According to the Constitution, development projects at the local level should fall under the purview of County Governments. The involvement of MPs in these matters interfered with the responsibilities assigned to County Administrations, further violating the separation of powers between the National and County Governments.

Infringement of Separation of Powers: The Members of Parliament (MPs') involvement in oversight was seen as a violation of the principle of separation of powers, as the legislative branch (Parliament) was taking on executive functions related to project implementation and financial management. The Court found that MPs were deeply involved in selecting and managing projects funded by the NG-CDF, roles that should be carried out by the executive branch of government. The Court ruled that this amounted to MPs exercising executive power. This contradicts the idea of separation of powers, a principle found in the Constitution that is meant to ensure that the Legislative, the Executive and the Judicial arms of the government remain distinct.

Lack of Senate Involvement: The Act establishing the NG-CDF was criticized for failing to involve the Senate in its enactment, which is required for certain legislative matters related to the allocation of national government resources. The Court found that the NG-CDF Act was passed without the consultation of the Senate, something that is constitutionally required whenever a law impacts the Counties. This oversight effectively bypassed the legislative procedures designed to ensure checks and balances, thereby undermining the legislative process and contributing to the violation of Constitutional Provisions.

Lack of Prudent Financial Management: The court also found that the NG-CDF's structure did not adequately ensure the prudent and efficient use of public funds, potentially leading to wastage and accountability issues.

TORCH AFRICA's Position on the NG-CDF

TORCH AFRICA is of the considered viewpoint that while it appreciates the concerns of Members of the National Assembly that motivated the creation of the CDF and public support for it as illustrated by the media reports from the engagements between the 5th and 7th May 2025, there are more effective ways of decentralizing funding to the local level without compromising on key constitutional principles like those of public finance. For example, it is possible to channel the funding through the two governmental structures provided in the Constitution, for example, to the county governments as conditional or unconditional grants as envisaged in article 202(2); or, through the structures of the national government at the local levels as contemplated in Article 6(3).

TORCH AFRICA hereby state that the NGCDF Act 2023 (amended 2015, 2022 & 2023) and the proposed Constitutional Amendment Bill, 2025 undermines devolution, causes conflicts between county and national governments and between the Members of Parliament and governors. Further that the 2015 Act and the activities of the Fund compromises the principles of fair elections, sustains corruption, intrudes on the functions of the national and county governments and in turn causes a wastage of resources.

TORCH AFRICA observes that since its inception the NG-CDF to date the Fund has been allocated over 500 Billion for projects activities that could otherwise be implemented by the National Government through its line ministries and agencies and those that could directly be implemented by the County Government Executive structures that are devolved to the lowest levels of sub counties and wards.

TORCH AFRICA observes that both national and county governments have elaborate offices and bodies to implement their respective functions. The structures for implementing executive functions at both levels of government are stipulated in statutory instruments including the National Government Co-ordination Act and the County Governments Act. As such, assert that the 2015 Act creates unnecessary, parallel and duplicative structures for conceptualization, management, coordination and implementation of projects.

TORCH AFRICA submits that the NG-CDF Act 2013, amended in 2015, 2022 & 2023 and its activities offends the principles of public finance contained in Article 201. The Act violates the principles of equitable share of resources, prudent use of public money, responsible financial management and clear fiscal planning.

TORCH AFRICA echoes the declaration of the High Court and Supreme Court that as long as the NGCDF, as established, involves aspects of service delivery, however well intended by the Members of the National Assembly, has the effect of creating structures that are incompatible with the nature of the distribution of functions between the two levels of government. The Supreme Court went on to say as follows, concerning the structure of the Fund: The functions of service delivery which is the character and nature of “community-based” projects targeted by the CDF Act 2013 are by nature executive functions. Accordingly, by nature they should be discharged by the executive structures of the appropriate level of government in terms of Article 1(3) (b) of the Constitution which vests executive functions in “the national executive and the executive structures in the county governments.

According to the history and significance of devolution as captured in the advisory opinion by the Supreme Court in *In the Matter of the Speaker of the Senate & another [2013] eKLR* where Mutunga CJ in his concurring opinion stated:(182) The current devolution provisions in Chapter 11 of the new Constitution are a major shift from the fiscal and administrative decentralization initiatives that preceded it. It encompasses elements of political, administrative and fiscal devolution. There is a vertical and horizontal dispersal of power that puts the exercise of State power in check. Importantly, the Constitution has created a Senate, an institution that enjoys direct legitimacy and a popular mandate, commanding it to be the protector of devolution.

TORCH AFRICA observes that the 2015 Act is structurally similar to the CDF Act 2013” and undermines devolution, causes conflict between county and national governments and between the Members of Parliament and Governors. It is further argued that it violates the constitutional principle of division of functions between the two levels of government. Reliance was placed on the decision in *The Council of Governors v Speaker of the Senate & Others [2015] eKLR* where the court held. Thus, the constitutional mandate of both the National Assembly and Senate are circumscribed by the Constitution and limited to those areas expressly placed within their mandate. With respect to the Senate, its constitutional mandate is that of representation of counties and protection of the interests of counties at the national level; law-making in relation to matters concerning counties at the national level; and allocation of revenue to counties, and oversight over national revenue allocated to counties. Its mandate, like that of the National Assembly, does not extend to matters or functions reserved by the Constitution to counties at the county level.

Human Rights & Civil Justice

TORCH AFRICA further observes that even though the CDF (Amendment) Act, 2013 provides that the monies under the Act shall be considered as funds allocated under article 206 (2) (c), under Section 10 of the CDF Act 2013, the Cabinet Secretary in allocating the fund for each financial year must seek concurrence of the relevant Parliamentary Committee. This clearly violates the principles of accountability and integrity due to likely conflict of interest. This is

because a Member of Parliament cannot oversee the implementation or coordination of the projects and at the same time offer oversight over the same projects.

The Organization maintains that the CDF as structured under the CDF Act 2013 violates the constitutional principles on public finance, particularly the principle of prudent and responsible management of public funds as enshrined in Article 201(d) of the Constitution may be considered as development projects for purposes of this Act provided that the allocation to such activities does not exceed five per centum of the total allocation to the constituency in that financial year.

TORCH AFRICA is of the informed position that the *Supreme Court in its judgment sealed the fate of NGCDF by declaring it unconstitutional and parliament cannot resurrect it through a Constitutional Amendment Bill, 2025 or any other without a Referendum.* Unfortunately, the same Parliament for the last 14 years failed to enact a Referendum law that could guide the Vote by Kenyan citizens pursuant to the directive principles of their sovereign power and supremacy of the Constitution stipulated Articles 1 and 2.

National Government Affirmative Action Fund and Implications of Court Judgments

The National Government Affirmative Action Fund (NGAAF) was established in 2014/2015 FY through Legal Notice No. 52 of the Public Finance Management Act No 18 of 2012. The primary objective is to empower affirmative action groups namely, women, youth, persons with disabilities(pwds), vulnerable children, and elderly persons through expanding access to financial facilities for the promotion of enterprise development and provision of social development services at the constituency and county levels.

The Cabinet Secretary in charge of Finance made the Public Finance Management (Affirmative Action Social Development Fund) Regulations to give women county representatives in parliament their own fund. This had a structure like the CDF one, and the Woman Representative was to be the county committee patron. The funds were to be used at county level to complement the CDF with a special focus on certain groups who required special attention or affirmative action—such as women, youth, and persons with disabilities, children and the elderly.

The NGAAF plays a crucial role in advancing social and economic equity in Kenya. Its history reflects the country's broader commitment to affirmative action and inclusive development, as it continues to support vulnerable and marginalized groups in achieving their potential.

The National Government Affirmative Action Fund supports vulnerable children by providing essential resources and services to improve their well-being. Through targeted programs, it ensures access to education, healthcare, and protection from exploitation. This initiative aims to

empower children from marginalized backgrounds, fostering their growth and integration into society.

The National Government Affirmative Action Fund empowers women by providing resources for education, healthcare, and economic opportunities. It supports table banking initiatives, enabling women to save, borrow, and invest together. This initiative promotes financial independence and gender equality, fostering women's active participation and leadership in society.

The National Government Affirmative Action Fund assists people with disabilities by promoting inclusivity and accessibility. It provides resources for education, healthcare, and vocational training, enabling individuals to lead independent and fulfilling lives. This initiative advocates for equal opportunities and rights, ensuring that people with disabilities are fully integrated into society.

The National Government Affirmative Action Fund supports the elderly by enhancing their quality of life through targeted programs. It provides resources for healthcare, social services, and community engagement, ensuring their well-being and dignity. This initiative aims to empower the elderly, promoting their active participation and integration into society.

The National Government Affirmative Action Fund supports youth by providing resources for education, entrepreneurship, and sports. It offers grants and loans, promotes table banking, and fosters the creative economy. This initiative empowers young people with opportunities for financial independence, skill development, and active participation in society.

The National Government Affirmative Action Fund (NGAAF) in Kenya was established to address the needs of vulnerable groups such as women, youth, and persons with disabilities (PWDs), children, and the elderly. Its creation is tied to Kenya's commitment to promoting social justice and inclusivity, as outlined in the 2010 Constitution. This Constitution emphasized affirmative action as a means to ensure equity and reduce the disparities that have historically affected marginalized groups.

NGAAF was officially created in 2015 through the Public Finance Management (Affirmative Action Social Development Fund) Regulations, 2015. The fund falls under the Ministry of Public Service, Youth, and Gender Affairs and is focused on addressing social and economic inequalities. It is designed to be a tool for empowering vulnerable communities and operates through county-based programs. The National Government has been allocated over Kshs 17 billion since its inception in the Financial Year 2014/15 to the financial 2024/25. The County Women Members of the National Assembly are lobbying and advocating for the amount allocated per year to be doubled from the current annual allocation of 1.5 Billion to at least 3 Billion.

The fund's main objectives are centered on implementing projects that uplift the welfare of targeted groups. NGAAF supports initiatives in education, health, economic empowerment, and social protection. These projects are managed by County Women Representatives, who oversee the fund's distribution and ensure that the programs align with the needs of their communities. This again causes confusion and duplication of resources contrary provisions of Article 201 of the Constitution of Kenya, 2010. The Women Members of the National Assembly are overstepping their constitutional mandate and functions of representation, legislation and oversight roles and responsibilities.

Since its inception, NGAAF has supported various projects across Kenya's 47 counties. This includes providing bursaries for needy students, funding small and medium enterprises (SMEs), and supporting infrastructure development in education and health. Through these efforts, the fund has helped bridge gender disparities and empower marginalized communities.

Litigation and Judgment against NGAAF

Despite its successes, NGAAF has faced several legal challenges. Concerns have been raised over the transparency and accountability of the fund, as well as the equitable distribution of resources. Some stakeholders have called for better oversight and increased community involvement in the decision-making processes to ensure the fund meets its intended goals

The High Court of Kenya on 29th August 2023 *In Mutuma & another v National Government Affirmative Action Fund*, found that the Public Finance Management Act, 2012 (National Government Affirmative Action Fund) Regulations 2016 were unconstitutional. The court acknowledged the unconstitutionality of the Regulations, but it also considered the practical implications of immediately ending the Fund. The court noted that bringing the Act to an abrupt end would not be in the interest of the nation, and that the principle of justifiability prohibited it from entertaining hypothetical issues. The court also considered the fact that funds had been allocated to projects under the Fund in the current financial year.

The 2015 Act, under which the NGAAF was established, was declared unconstitutional, and it ceased to operate at the stroke of midnight on June 30, 2026. The court noted that the Division of Revenue Act had lapsed at the end of the financial year, and there was no live issue for determination by the court.

Despite the court's decision, there is ongoing debate about the NGAAF and whether it aligns with the Constitution. Some argue that the NGAAF is constitutionally superfluous and inconsistent with the principles of public spending. Others argue that the NGAAF has provided valuable services and should be protected by the Constitution.

Since its inception, NGAAF has supported various projects across Kenya's 47 counties. This includes providing bursaries for needy students, funding small

In essence, while specific regulations related to the NGAAF have been declared unconstitutional, the fund itself has continued to operate, though under a sunset clause. There are ongoing debates about its future and whether it should be entrenched in the Constitution.

The National Government Affirmative Action Fund (NGAAF) has been subject to legal challenges, and some aspects of it have been declared unconstitutional. Specifically, the Public Finance Management Act, 2012 (National Government Affirmative Action Fund) Regulations 2016 were deemed unconstitutional in a 2023 court case. However, the court also recognized that bringing the Act to an abrupt end wouldn't be in the best interest of the nation.

TORCH AFRICA's Position on NGAAF

TORCH AFRICA is of the informed view that since the custodians of NGAAF are the 47 elected County Women Members of the National Assembly, they like their counterparts of the 290 single Constituency Members of the National Assembly are engaged in conflict of interest.

That the projects under NGAAF not only cause confusion and duplication but also undermines and offends the principle of separation of powers enshrined in the constitution of Kenya, 2010. That although NGAAF draws its mandate from Articles 27, 54, 55 and 56 and 57 of the Constitution and it offends the principle of prudence, transparency and accountability of accountability in the management of public resources stipulated in Article 201 of the same Constitution. The Women Members of the National Assembly are also overstepping their constitutional mandate and functions of representation, legislation and oversight roles and responsibilities.

Senate Oversight Fund and Implications of Court Judgments

The County Oversight and Accountability Bill, 2021 (Senate Bill No. 17 of 2021) further outlines the procedures and processes for the Senate's oversight role, according to the Parliament of Kenya.

The objective of the Senate Oversight Fund (SOF) is to ensure accountability and transparency in the use of public funds at the county level, contributing to good governance and the efficient delivery of public services. That certain aspects of the Senate Oversight Fund in Kenya have been declared unconstitutional. Specifically, the exclusion of Nominated Senators from receiving these funds has been deemed unconstitutional. The High Court, in a consolidated petition, ruled that the decision to exclude Nominated Senators was null and void.

The Consolidated Petitions (Petition E340 & E363 of 2023) before Justice LN Mugambi of the High Court of Kenya stemmed from the establishment and operationalization of the Senate Oversight Function Fund, which allocated Kshs. 500,000,000 for senators to perform their oversight roles. The Parliamentary Service Commission allocated 90% of the funds to elected senators and 10% to the nominated senators. The petitioners argued that the exclusion violated articles 10, 27, 96 and 201 of the Constitution of Kenya, emphasizing principles of inclusivity, non-discrimination and public finance accountability.

This matter calls for an interpretation of constitutional provisions. This Court was guided by the principles of constitutional interpretation stipulated under Article 259 of the Constitution of Kenya, 2010.

The High Court of Kenya found no fault in the introduction to facilitate Senators carry out a Parliamentary function falling within the scope of the Respondent's responsibilities. However, the manner of implementation and/or operationalization raises serious constitutional questions, namely: the exclusion of nominated senators who represent special interests from being facilitated to undertake a constitutional function thereby offending the principle of inclusivity under article 10(2) (b) of the Constitution, and for the lack of a properly defined scheme spelling out the activities that this money can be applied to, the extent and the nature of

In the High Court of Kenya Judgment delivered on 26th April, 2024 on the Senate Oversight Fund, by Justice LN. Mugambi declared that its implementation is thus wanting on grounds of violating the inclusivity principle under Article 10(2) (b) and for the failure to espouse the principles of openness and accountability under article 201(a) of the Constitution of Kenya, 2010 on public finances. He also declared that the decision to exclude Nominated Senators from the Senate Oversight Fund is unconstitutional, null and void. Further, to ensure inclusivity, openness and accountability in the implementation process, an order be and is hereby issued directing the Respondent to immediately stop any further disbursements in respect of "Senate Oversight Fund" until it formulates, subjects to public participation and publishes regulations outlining the activities that money may be applied to, includes all the Senators, defines distribution criteria, sets out an accountability process including general control and management to facilitate prudent utilization.

The High Court of Kenya temporally declared that no disbursement of funds under the Senate Oversight Funds (SOF) till case lodged by six nominated senators is determined. The case is pending hearing and determination by the court.

The membership of the Senate is provided for in **Article 98(1)** of the Constitution of Kenya as follows:

The Senate consists of--i. forty-seven members each elected by the registered voters of the counties, each county constituting a single member constituency;ii.sixteen women

members who shall be nominated by political parties according to their proportion of members of the Senate elected under clause (a) in accordance with article 90;iii.two members, being one man and one woman, representing the youth;iv.two members, being one man and one woman, representing persons with disabilities; and v.the Speaker, who shall be an ex officio member.

While discussing the senate's oversight role in Council of Governors & 3 others v Senate & 53 others [2015] eKLR, the 3-judge bench observed as follows:

"...The Senate's role, as is evident from the provisions of article 96, is to represent the counties at the national level, and to protect their interests and governments; to participate in the law-making function of Parliament by considering, debating and approving Bills concerning counties, and to determine the allocation of national revenue to and among counties. Further, and more importantly, the Senate plays a critical oversight role with respect to the functioning of counties. In The Council of Governors and others v. The Senate (supra), a three-judge bench of this Court considered the meaning of the term "oversight" and stated as follows:

...while the Senate has an oversight role over national revenue allocated to County Governments, the issue in that regard, as we understand it, is the scope, extent and nature of the said oversight role. In answering that question, we must first explain the meaning of the word, "oversight", in its ordinary English meaning before we determine the extent of its applicability. The plain English meaning of the word "oversight" as defined in the Concise Oxford English Dictionary, 10th Edition is; "the action of overseeing". "Oversee" has then been defined by the same dictionary as, "supervise" or "look at from above".

From a Constitutional view-point, the High Court held that role of oversight is exercised by the Senate collectively and indivisibly the Senators. The role of oversight by the Senate is not assigned to the elected Senators only. The setting aside money for sharing out only to the elected Senators purportedly to exercise the oversight mandate does not therefore align with our Constitutional design, object or intent. The oversight function is collectively exercisable by all the Senators in the Senate and facilitation criteria that omits the Nominated Senators cannot be constitutionally justified as the oversight is not a preserve of elected Senators only.

The Supreme Court then concluded as follows with respect to the oversight role of the Senate:

"Taking the above meanings and as can be seen in the context of article 96(3) of the Constitution, in our interpretation, oversight implies a procedural and substantive function for the Senate. Procedural in the sense that the Senate is involved in the process

leading to division and sharing of national revenue as between the National and County Governments as envisaged.

In the Speaker of the Senate & Another v Attorney General, Advisory Opinion no 2 of 2013, the Court stated that after allocation of national revenue to Counties, the Senate exercises what we would call substantive oversight by ensuring that the revenue so allocated has been disbursed to the Counties in accordance with the law and that County financial operations are going on as normally as possible. Substantive oversight would also, in our view, mean that the Senate would be mandated to get explanations on how Counties spend the National revenue allocated to them in the event audit queries are made by the Auditor General in his report made pursuant to the provisions of article 229 of the Constitution.”

Equally the Supreme Court in *Senate & 2 others v Council of County Governors & 8 others (Petition 25 of 2019) [2022] KESC 7 (KLR) (Constitutional and Human Rights) (17 February 2022) (Judgment)* stated that: “

Under Article 96(1), the Senate represents the counties and serves to protect their interests. The Senate participates in the law-making function of Parliament by considering and approving Bills concerning counties. It has the power to determine the allocation of national revenue among counties, and to oversight over the use of those resources. To discharge these responsibilities, the Senate is not expected to relocate to the counties to exercise supervisory powers at that level. That would be intrusive into the functional and institutional integrity of the county government and unacceptable overreach. It must not be involved in the administrative nitty-gritty details of the counties. Its oversight as indeed its legislative roles, are to be exercised in accordance with the Constitution and the law.

While at it, it important to reflect on the Supreme Court Judgment *in Senate v. Council of Governors case (supra)* where the Court remarked thus: “the Senate is not expected to relocate to the counties to exercise supervisory powers under Article 127(6) of the Constitution of Kenya, 2010 at that level. That would be intrusive into the functional and institutional integrity of the county government and unacceptable overreach. It must not be involved in the administrative nitty-gritty details of the counties. Its oversight as indeed its legislative roles, are to be exercised in accordance with the Constitution and the law.”

The question of the ‘manner, the extent or the nature of the oversight function that is to be performed by the Senators through this facilitation’ is of important concern. While it is within the mandate of the respondent to facilitate the Senators to carry out their Parliamentary mandate, it equally important to do so in deference to the constitutional mandate given to the County Governments. Consequently, an implementation strategy

that does not have a defined framework that outlines the scope, extent and the nature of the said oversight may be a potential risk for the devolution function by bringing in uninhibited interference with the County functions.

OVERVIEW OF THE CONSTITUTION OF KENYA (AMENDMENT) BILL, 2025

The National Assembly is considering the Constitution of Kenya (Amendment) Bill, 2025. The Bill is sponsored by **MPs Hon. Otiende Amollo and Hon. Samuel Chepkonga**. It was first introduced in the National Assembly on 12 March 2025, when it was read for the first time. The National Assembly has since scheduled and called for public participation across all the 290 constituencies in Kenya between **5th and 7 May 2025**. This was done through various newspaper adverts and the National Assembly's website. The members of the national assembly led the entire process with the assistance of parliamentary staff and their allies in the 290 constituencies.

The ultimate objective of the Constitutional Amendment Bill, 2025 is to entrench three (3) Funds in the current Constitution of Kenya, namely: the National Government Constituency Fund (NGCF), the Senate Oversight Fund (SOF), and the National Government Affirmative Action Fund (NGAAF) through a Parliamentary Initiative without requiring a Referendum.

TORCH AFRICA is of the considered view that the ***entire Constitutional Amendment Bill, 2025 is constitutionally defective and unwarranted, and the Funds it seeks to create are inconsistent with the spirit and letter of the Constitution of Kenya, 2010***, particularly the Doctrine and Principle of Separation of Powers between the three Arms of Government (Executive, Legislature and Judiciary). It undermines the structure and functions of the devolved system of government stipulated in Article 6, 10, 174, 186, 187 as read together with the Fourth Schedule of the Constitution. It also violates the Principle of prudent management of public resources stipulated in Chapter 12 of the Constitution, particularly Article 201. The so called Public Participation was stage managed by the Members of Parliament in their respective constituencies. They who had leading questions and appeals to the participants as illustrated by their biased and reckless pronouncements over the media during the engagements.

Furthermore, the said Bill contains provisions that will need to be approved in a Referendum and yet Parliament has failed to enact a Referendum Law, for the last 14 years since the promulgation of the Constitution of Kenya, on the 27th of August 2010. Therefore, Parliament should be compelled to enact a referendum law, which it has failed to do for the past 14 years, before embarking on any constitutional amendment process. The High Court of Kenya and Supreme Court of Kenya in their respective Judgments sealed the fate of all the aforementioned funds by declaring them unconstitutional

One of the greatest aspirations of Kenyans before the new order was to devolve power from the centre to the periphery. Hitherto the new constitutional order all government administration was concentrated in the Nairobi, the Capital City. Not even local government was effective as it was in the strong grip of the then Ministry of Local Government. The absence of devolved system of government in terms of power, resources, services and the desire for equitable distribution of resources led to the creation of the Constituency Development Fund in 2003: intended for development at constituency level, with each Member of Parliament playing a crucial role in management, implementation and oversight of the fund. So important was the fund that it came to be used as a yardstick for measuring the effectiveness of the leadership of a member of parliament. This type of development paradigm is no longer tenable under the Constitution of Kenya, 2010 which created two tier system of government consisting of one (1) National Government and Forty Seven (47) County Governments as stipulated in Article 6 of the Constitution with district functions for the two levels stipulated in the Fourth Schedule.

The Constitution of Kenya, 2010 precipitated a complete paradigm shift in governance and use of public resources. Resources and responsibility for using them are supposed to be shared between the national and the county governments.

CRITICAL ANALYSIS OF THE PROPOSED CONSTITUTIONAL AMENDMENT BILL, 2025

- That the Constitution of Kenya (Amendment) Bill, 2025 is unnecessary and that it violates the constitutional requirement for prudent and responsible use of public resources, good governance and sustainable development stipulated in Article 201 of the Constitution of Kenya, 2010 as read together with several sections of the Public Finance Management Act, 2012 and PFM Regulations 2025.
- That the proposed constitutional amendments under Articles 204A and 204B of the Constitution of Kenya, 2010, seeking to entrench National Government Constituency Development Fund (NGGCF) and SOF are inconsistent with the letter and spirit of the Constitution of Kenya, 2010.
- That is not necessary and a waste of valuable time and public resources for the National Assembly to introduce an Amendment under Article 204C of the Constitution of Kenya, 2010 as the same is being implemented lawfully through Article 2026(1) (a) of the Constitution.
- That the constitutional imperatives under Articles 201(d) & (e), as read with Article 10 (2) (c) & (d), require that constitutional amendments should not be initiated to provide for issues that the Constitution already sufficiently considers and provides for.

- Declare that Parliament should habitually scrutinize proposed constitutional amendments and ensure that the issues sought to be addressed are only those that cannot be adequately addressed under the existing Constitution so as to preserve the sanctity of the Constitution and ensure the prudent and responsible use of public resources.
- **TORCH AFRICA** is of the informed opinion that the proposed Constitutional Amendments to entrench the aforementioned funds in the Constitution requires a Referendum conducted by IEBC and yet we do not have a Referendum Act of Parliament.
- The Bill seeks to, among other things, entrench the Senate Oversight Fund. This is stated to be aimed at facilitating the Senate's oversight functions. The Senate serves as a critical institutional structure of devolved government. Based on these two facts, the Bill touches on the entrenched provisions under Article 255(1) (h) & (i) of the Constitution: the functions of Parliament and the structure of devolved government.
- **TORCH AFRICA** observes that whereas the Senate Oversight Fund was a noble initiative, its suggestions of giving 90% of the 500,000,000 to elected Senators and 10% to Nominated Senators is discriminative and unconstitutional as it does not put into consideration the directive principles of Articles 10(2)(b), 27 and 100 of the Constitution of Kenya, 2010. We submit that nominated Senators represent special interests within the Senate through which the principle of inclusivity under Article 10 (2) (b) is actualized by bringing on board persons who would otherwise have not had representation. Denying them the facilitation accorded to the elected Senators is to perpetuate the culture of exclusion which is contrary to the purposes, values and principles of the Constitution, and in particular, it is a direct violation of article 10 (2) (b) and 27(8).
- The sanctity and uniquely important nature of constitution-making and remaking processes demand a high level of clarity and certainty of the applicable rules and procedures. To achieve this, the Constitution explicitly directs parliament to pass a referendum law.
- That the lack of legislation has created a gap in how referenda are to be understood and conducted is a violation of the right to vote in referenda. This means Parliament has since the Promulgation of the Constitution of Kenya, 2010 violated various provisions including Articles 10, 38, 47, 82, 94, 95, 201, 259(8) and 261 of the Constitution.
- That the Constitutional Amendment Bill, 2025 touches on the entrenched provisions under Article 255 of the Constitution of Kenya, 2010. The role of the Senate and National Assembly cannot be altered without a Referendum.

- That no constitutional amendment can be considered and/or effected solely by Parliament on the National Government Constituency Development Fund (NGCDF), Senate Oversight Fund (SOF) and National Government Affirmative Action Fund (NGAF) without enacting a Referendum Law to guide the process as stipulated in Articles 255, 256 and 257 of the Constitution of Kenya, 2010.
- The Constitution of Kenya Amendment Act, 2025 is unconstitutional for failing to explain in its memorandum of objects whether the proposed amendments touch on provisions of the Constitution whose amendment would require approval in a referendum.
- This means that unless other related provisions of the Constitution are amended, the proposed amendments will conflict with those provisions and the principles that they establish. This will undermine the intention of the drafters of the Constitution and the Kenyan people.
- The Constitution confers functions on State Organs, establishes structures for their implementation and provides for how these organs will be financed to carry out these functions.
- The NGCDF is stated to be seeking to implement functions belonging to the national government. The national executive bears the obligation to implement these functions, and the annual budget provides funding for them. Establishing a separate Fund and structures to implement these functions under NGCDF conflicts with this constitutional structure. This will be like amending the Constitution to establish separate Funds and structures through which counties will implement their functions.

REASONS FOR OBJECTION TO THE PROPOSED CONSTITUTIONAL AMENDMENT BILL, 2025

TORCH AFRICA observes that the system of checks balances was well discussed in *Francis Maliti v County Assembly of Machakos & 2 others; Governor, Machakos County (Interested Party)* [2019] eKLR , where the Court observed that: “The broad principle of “separation of powers”, certainly, incorporates the scheme of “checks and balances”; but the principle is not to be applied in theoretical purity for its ultimate object is good governance, which involves phases of co-operation and collaboration, in a proper case. This perception emerges from Commission

for the Implementation of the Constitution v. National Assembly of Kenya, Senate & 2 Others [2013] eKLR where Njoki, SCJ opined that:

“The system of checks and balances that prevents autocracy, restrains institutional excesses and prevents abuse of power apply equally to the Executive, the Legislature and the Judiciary. No one arm of Government is infallible, and all are equally vulnerable to the dangers of acting ultra vires the Constitution. Whereas, the Executive and the Legislature are regularly tempered and safeguarded through the process of regular direct elections by the people, the discipline of an appointed and unelected judicial arm of Government is largely self-regulatory. The parameters of encroachment on the powers of other arms of Government must be therefore clearly delineated, [their] limits acknowledged, and restraint fully exercised. It is only through the practice of such cautionary measures, that the remotest possibility of judicial tyranny can be avoided.”

This was as well appreciated by the Court of Appeal in Mumo Matemu v Trusted Society of Human Rights Alliance & 5 Others (2013) eKLR where it was stated that: “Separation of powers does not only proscribe organs of government from interfering with the other’s function, but also entails empowering each organ of government with countervailing powers which provide checks and balances on actions taken by other organs of government. It also warned that such powers are, however, not a license to take over functions vested elsewhere, and recommended that there must be judicial, legislative and executive deference to the repository of the function.”

Under the principle of separation of powers, courts refrain from interfering with the operations of other arms of government only to the extent that the Organ operates within the confines of the Constitution. Where a Constitutional organ gets off-track, it becomes the Constitutional duty of the Court to remind and it get back to the track. This principle was elaborately discussed in the South African case of Doctors for Life International v Speaker of the National Assembly and Others (CCT12/05) [2006] ZACC 11 where the Court stated thus:

“The constitutional principle of separation of powers requires that other branches of government refrain from interfering in parliamentary proceedings. This principle is not simply an abstract notion; it is reflected in the very structure of our government. The structure of the provisions entrusting and separating powers between the legislative, executive and judicial branches reflects the concept of separation of powers. The principle ‘has important consequences for the way in which and the institutions by which power can be exercised’.

Chapter 12 of the Constitution sets out the principles that guide public finance. Article 201 of the Constitution of Kenya, 2010 provides: The following principles shall guide all aspects of public finance in the Republic-i. There shall be openness and accountability, including public

participation in financial matters;ii.the public finance system shall promote an equitable society, and in particular—ii.The burden of taxation shall be shared fairly;(ii)revenue raised nationally shall be shared equitably among national and county governments; and (iii)expenditure shall promote the equitable development of the country, including by making special provision for marginalized groups and areas;(c)the burdens and benefits of the use of resources and public borrowing shall be shared equitably between present and future generations;(d)public money shall be used in a prudent and responsible way; and(e)financial management shall be responsible, and fiscal reporting shall to the relevant authority.

TORCH AFRICA is of the informed viewpoint that the Public Finance Management Act, 2012, makes provisions on how the government at both the national and county levels can raise and spend public funds. Furthermore, the Act guides the national and county governments in the management of public finances while providing for the oversight authority of Parliament and county assemblies in public finance management. This objective is set out under section 3 of the Act as follows:

The object of the PFM Act, 2012 is to ensure that—i. Public finances are managed at both the national and the county levels of government in accordance with the principles set out in the Constitution; and ii.public officers who are given responsibility for managing the finances are accountable to the public for the management of those finances through Parliament and County Assemblies.

TORCH AFRICA’S OBSERVATIONS AND RECOMMENDATIONS ON CONSTITUTIONAL AMMENDMENTS

TORCH AFRICA hereby submit that the Constitution of Kenya, 2010 is the Supreme Law of the land and must be treated as such. It should not be subjected to unnecessary amendments by any individual, Parliament and/or any other organ of the state. It safeguards our most fundamental rights and freedoms that are enshrined across various chapters apart from those specified and domiciled under the Bill of Rights -Chapter 4. State Organs, such as Parliament, have a solemn obligation to ensure that the discharge of their functions does not undermine the Constitution, violates its basic structure or negate constitutional gains.

TORCH AFRICA further submits of the considered viewpoint that the push by the National Assembly of the Republic of Kenya to amend the Constitution vide the Constitutional Amendment Bill, 2025 is unconstitutional, illegal, irregular and unprocedural. It is a parliamentary initiative characterized by conflict of interests geared to serve the selfish interests of Members of Parliament. This can be discerned and inferred from their skewed public

pronouncements during the much publicized and stage managed public participation across the 290 constituencies between 5th and 7th May, 2025.

The Organization observes that what took place on the aforementioned dates doesn't not amount to meaningfully public participation because the participants did not get prior sensitization and objective civic education on the pros and cons of the envisaged funds before they were convened to air their views on the same.

TORCH AFRICA state that innocent Kenyans are being manipulated and misused by self-centered MPs, their servants, agents and their allies to support the entrenchment of the funds without regard to the constitutional implications as severally pronounced by the High Court of Kenya and the Supreme Court of Kenya. The establishment of numerous funds for legislators is not only a waste of public resources but a violation of the doctrine and principle of separation of powers between the Executive, Legislature and the Judiciary. The members of Parliament (National Assembly & Senate) should not be allowed to deviate from their cardinal constitutional mandate and roles namely; Representation, Legislation and Oversight.

TORCH AFRICA further states that the National Affirmative Action Fund (NGAAF) is currently being implemented through the Public Finance Management Act (National Government Affirmative Action Fund) Regulations, 2016. Article 206(1) (a) of the Constitution allows for the creation of special-purpose Funds. This therefore does not require any constitutional amendment vide the current Constitutional Bill No 4 of 2025.

Under the Constitution of Kenya, 2010, the Senate exists to carry out four (4) main functions stipulated in Article 96. The two of these functions are to oversee county spending of national revenue and to oversee State officers. To enable the Senate to perform these functions, the Parliamentary Service Commission is required to independently ensure the Senate is adequately resourced through the annual budget. It is ENAF's considered opinion that establishing a separate Fund financed from the National executive's money to facilitate Senate oversight duplicates Senate funding (which means wastage) and interferes with the constitutional intention to fund parliament independently from the executive to facilitate the separation of powers. Indeed, the purpose and objective of the proposed Senate Oversight Fund (SOF) is presently implemented through the budgetary provisions relating to Parliament under the Constitution.

TORCH AFRICA strongly recommends that Parliament ought instead to redirect its efforts to its legislative role to enact a Referendum Law as required under the Constitution to provide guidelines for when the Kenyan people have real issues that would necessitate the exercise of their sovereignty in favour of a constitutional amendment.

That it is paramount that the Constitution of Kenya, 2010 and its constitutional directive principles are preserved, upheld, respected, cherished and promoted in the spirit and letter of

Article 3, given that it is the Supreme Law of the Land. Indeed, under Kenya's constitutional democracy, the Constitution is the Supreme Law and any other law that contradicts is null and void. It is binding on all branches of government and no less on Parliament. When it exercises its legislative authority, Parliament 'must act in accordance with, and within the limits of, the Constitution', and the supremacy of the Constitution requires that 'the obligations imposed by it must be fulfilled'. Courts are required by the Constitution 'to ensure that all branches of government act within the law' and fulfil their constitutional obligations.

TORCH AFRICA categorically state that the Kenyan Courts have been given the responsibility of being the ultimate guardian of the Constitution and its values'. Article 167(4) (e), in particular, entrusts the Courts with the power to ensure that Parliament fulfils its constitutional obligations. This section gives meaning to the supremacy clause, which requires that 'the obligations imposed by the Constitution must be fulfilled'. It would therefore require clear language of the Constitution to deprive this Court of its jurisdiction to enforce the Constitution."

TORCH AFRICA echoes the pronouncement by the High Court of Kenya that "*Courts have traditionally resisted intrusions into the internal procedures of other branches of government. They have done this out of comity and, in particular, out of respect for the principle of separation of powers. But at the same time they have claimed the right as well as the duty to intervene in order to prevent the violation of the Constitution.*"

TORCH AFRICA observes that the proposed constitutional amendment Bill, 2025 is inconsistent with the spirit and letter of the Constitution of Kenya, 2010. The Amendment Bill and its related process be discarded by Parliament, its members, servants, agents and allies. The members of Parliament should respect the Judgment and orders issued by the High Court of Kenya and the Supreme Court of Kenya regarding the three (3) Funds; National Constituency Development Fund (NGCDF), National Government Affricative Action Fund (NGAAF) and Senate Oversight Fund (SOF) for the sake of nurturing, maintaining and sustaining our constitutional democracy and good governance.

TORCH AFRICA observes that Parliament as a legislative arm of government under the Constitution consists of the Senate and the National Assembly. The legislative remit of the National Assembly falls under the national government in the vertical division of powers between the national government and the county governments. This is evident from article 95 of the Constitution.

TORCH AFRICA categorically states that the Judgment of the Supreme Court of Kenya is binding on this court and by dint of article 163(7) of the Constitution which provides that "all courts, other than the Supreme Court, are bound by the decisions of the Supreme Court". This applies to the declaration that NGCDF is unconstitutional, *null and void abnatio*.

REFERENCES:

The Constitution of Kenya, 2010 — articles 1(3);(4), 2(1);(2);(4), 3(2), 4(1), 6(1), 10, 24, 53(1), 89(1), 93, 95, 96, 109 (3), (4),(5), 110(1), 125, 129, 130, 131, 163 (7), 165(4),174, 175, 176(2), 183(1)(b), 186, 187(1), 189, 201, 202(2), 203, 205(2), 206, 208(2), 216, 218, 234(2)(iii), 259; Schedule IV; part 2; Chapter 12; part 1

Constituency Development Fund Act, 2003

Contingency and County Emergency Funds Act (No.17 of 2011) — section 10(2); part 3

County Governments Act 2012)

Division of Revenue Act (2022)

Intergovernmental Relations Act, 2011

National Government Constituencies Development Fund Act (cap 414A) — section 3(k),(l), 4(8), 8, 11, 14, 15(4), 16, 19, 22, 23(1), 24(b), 25(5);(7);(8);(10), 26(2), 27(10), 31, 36(2);(3), 43, 48, 50, 52, 53; part IV, V, VI, VII

National Government Constituencies Development Fund (Amendment) Act (2022)

National Government Constituencies Development Fund (Amendment) Act (2023)

National Government Co-Ordination Act (cap 127)

Public Finance Management Act, 2012

Torch Africa reviewed and analyzed Various High Court of Kenya, Court of Appeal of Kenya and Supreme Court of Kenya Judgments on National Government Constituency Development Fund (NG-CDF), National Affirmative Action Fund (NGAAF) & Senate Oversight Fund (SOF).

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